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Katy, Texas 77494
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Date: July 20, 2026

DNF Associates, LLC
2351 North Forest Road
Getzville, NY 14068

**RE: FORMAL DEBT DISPUTE, CEASE COLLECTION DEMAND & NOTICE OF
PARALLEL LEGAL PROCEEDINGS**

Original Creditor: Fortiva Retail Credit / The Bank of Missouri

Account Ending: 9302

Balance Claimed: \$1,693.14

Date of Sale to DNF Associates: On or about 05/15/2026

FTC Identity Theft Report #: 202816785

To Whom It May Concern:

I am writing in response to your acquisition of the above-referenced account. I formally dispute this debt in its entirety pursuant to my rights under the Fair Debt Collection Practices Act (FDCPA), 15 U.S.C. § 1692g, and the Fair Credit Reporting Act (FCRA), 15 U.S.C. § 1681 et seq.

THIS IS NOT A VALID DEBT — ORIGIN IS FRAUDULENT

This account was opened as a direct result of fraudulent misrepresentation by a Vivint sales representative who verbally promised me a 30-day free trial. The actual written contract contained only a 3-day trial period — a material fact deliberately concealed from me at the point of sale. I was never clearly informed that a retail credit account was being opened in my name under these terms. This constitutes deceptive conduct under the Texas Deceptive Trade Practices Act, Tex. Bus. & Com. Code § 17.46(b).

Upon discovering the fraud, I contacted both Vivint and Fortiva to cancel the account. Vivint refused to locate or identify the sales representative responsible. Fortiva refused to close the account despite my explicit and repeated requests. I never used or benefited from the service. The entire balance you have purchased is the product of fraud and unauthorized account maintenance.

PURSUANT TO 15 U.S.C. § 1692g, I HEREBY DEMAND:

1. COMPLETE VALIDATION OF DEBT — Provide within 30 days:

- The original signed contract or agreement bearing my wet-ink signature
- Itemized account statement showing the exact calculation of \$1,693.14
- Proof that DNF Associates, LLC is licensed to collect debts in the State of Texas
- Complete chain of title from Fortiva Retail Credit / The Bank of Missouri to DNF Associates,

LLC, including the purchase agreement and any bill of sale

- All call logs and written correspondence between myself and Fortiva / Vivint
- Your registered agent information in Texas

2. CEASE ALL COLLECTION ACTIVITY

Pursuant to 15 U.S.C. § 1692g(b), all collection activity — including any contact, reporting, updating, or furnishing of information — must cease immediately until the debt is fully validated.

3. FCRA CEASE REPORTING — 15 U.S.C. § 1681s-2(a)

Any reporting of this account to Equifax, Experian, or TransUnion constitutes a violation of the FCRA, which prohibits data furnishers from reporting information they know or have reasonable cause to believe is inaccurate. This account originated through fraudulent misrepresentation; any furnishing of this information is per se inaccurate and unlawful.

4. IDENTITY THEFT BLOCK — 15 U.S.C. § 1681c-2

I have filed a formal Identity Theft Report with the Federal Trade Commission (Report #: 202816785). Pursuant to § 1681c-2, I am simultaneously demanding that all three consumer reporting agencies block this tradeline. You are hereby notified that continued reporting after notice of identity theft may constitute willful non-compliance under 15 U.S.C. § 1681n, subjecting you to actual damages, statutory damages up to \$1,000 per violation, punitive damages, and attorney's fees.

5. ARBITRATION NOTICE

If the original agreement between myself and Fortiva Retail Credit / The Bank of Missouri contained a mandatory arbitration clause, I hereby invoke that clause and reserve all rights to bring claims before the designated arbitration forum (JAMS or AAA) for all FDCPA and FCRA violations committed by Fortiva, The Bank of Missouri, and DNF Associates, LLC.

NOTICE OF SIMULTANEOUS REGULATORY FILINGS

I am simultaneously filing complaints with:

- Consumer Financial Protection Bureau (CFPB) — consumerfinance.gov/complaint
- Federal Trade Commission (FTC) — reportfraud.ftc.gov
- Texas Attorney General Consumer Protection Division — texasattorneygeneral.gov
- Texas Office of Consumer Credit Commissioner (OCCC) — regarding DNF's Texas licensing

Any continued collection activity on this disputed, fraudulently originated account may constitute a violation of the FDCPA, FCRA, and Texas DTPA, for which I expressly reserve the right to seek statutory damages, treble damages under TDTPA § 17.50, and all other available remedies.

You have **30 days** from receipt of this letter to respond with complete validation. Failure to validate and cease collection activity will be treated as an admission that the debt is invalid.

Sincerely,

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Enclosures:

- Copy of Fortiva notification email (May 2026)
- Copy of original dispute letter to Fortiva (June 2, 2026)
- Copy of FTC Identity Theft Report #202816785
- Copy of this letter sent simultaneously to Fortiva Retail Credit / The Bank of Missouri